MAXIMUM PRICES

ASPEN, BALM OF GILEAD, ELM, JACK PINE AND SOFT MAPLE

Diameter:	Price per 8' tie cut
7½" to but not including 8½"	$0.20
8½" to but not including 9½"	0.40
9½" to but not including 10½"	0.50
10½" to but not including 11½"	0.60
11½" to but not including 14½"	0.75
14½" to but not including 16½"	1.10
16½" and over	1.40

BIRCH, HARD MAPLE, ASH, RED OAK

Diameter:	
7½" to but not including 8½"	$0.25
8½" to but not including 9½"	0.60
9½" to but not including 10½"	0.70
10½" to but not including 11½"	0.80
11½" to but not including 14½"	0.95
14½" to but not including 16½"	1.30
16½" to but not including 18½"	1.60
18½" to but not including 22½"	2.50
22½" and over	3.20

WHITE OAK

Diameter:	
7" to 8"	$0.40
8" to 11½"	1.05
11½" to 14"	1.20
14" to 18"	1.85
18" to 22"	2.75
22" and up	3.50

TAMARACK

Diameter:	
7" to 8"	$0.30
8" to 14"	0.70
14" and up	1.40

CEDAR

Diameter:	
7" to 8"	$0.30
8" and up	0.60

For 8½' tie cuts of all species add $1.10 per tie cut.

The above prices will prevail for tie cuts f. o. b. cars at a shipping point or for tie cuts delivered to a mill by truck: *Provided*, That the mill is located at a rail shipping point. If the mill is not located at a rail shipping point, the cost of hauling the tie cuts from the mill to the nearest rail shipping point must be deducted.

If delivery of tie cuts is made at any point other than those set forth above, the buyer must deduct from the maximum prices the cost of hauling the tie cuts from the point where delivery is taken to the buyer's mill; if that mill is not on a rail siding, the buyer must also deduct the cost of transporting the tie cuts from that mill to the nearest rail loading point.

This amendment shall become effective February 14, 1944.

(56 Stat. 23, 765; Pub. Law 151, 78th Cong.; E.O. 9250, 7 F.R. 7871, E.O. 9328, 8 F.R. 4681)

Issued this 8th day of February 1944.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 44-1884; Filed, February 8, 1944; 11:43 a. m.]

PART 1315—RUBBER AND PRODUCTS AND MATERIALS OF WHICH RUBBER IS A COMPONENT

[MPR 143,[1] Amdt. 9]

WHOLESALE PRICES FOR NEW RUBBER TIRES AND TUBES

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.*

Maximum Price Regulation 143 is amended in the following respects:

1. The second and third sentences in § 1315.1502 (b) (2) are amended to read as follows: "The maximum wholesale price under this subparagraph (2) shall in no case be higher than the price determined by deducting a discount of 25 percent for tires other than farm tractor tires, 30 percent for tubes other than farm tractor tubes, and 22½ percent for farm tractor tires and tubes, from the maximum retail price of the tire or tube as fixed by Revised Price Schedule 63.[2] If applying subdivision (i) or (ii) below results in a maximum wholesale price lower than the price which would result from the deduction of these discounts, the maximum wholesale price under this subparagraph (2) shall be determined under subdivision (i) or (ii), whichever is applicable."

2. Section 1315.1502 (b) (3) is amended to read as follows:

(3) *New class of purchasers or new seller.* If the seller did not deliver or offer for delivery during March 1942 any new tires or tubes other than passenger car, to a purchaser of the same class, or if the seller was not in the business of selling such new tires or tubes during March 1942, the maximum wholesale price shall be determined by deducting the following discounts from the maximum retail prices fixed by Revised Price Schedule 63:

Tires, other than farm tractor tires	25 percent
Tubes, other than farm tractor tubes	30 percent
Farm tractor tires and tubes	22½ percent.

3. A new § 1315.1507a is added to read as follows:

§ 1315.1507a *Special prices for brand owners.* This section applies to a brand owner whose wholesale maximum prices for new natural and synthetic rubber tires and tubes are out of line with the level of wholesale maximum prices established for brand owners generally. Notwithstanding any other provision of this regulation, the maximum wholesale prices for sales of new natural and synthetic rubber tires and tubes by such a brand owner shall be determined under § 1315.1507 of this regulation. The brand owner must make application to the Office of Price Administration, Washington, D. C., as required by that section.

This amendment shall become effective February 14, 1944.

(56 Stat. 23, 765; Pub. Law 151, 78th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 4328, 8 F.R. 4681)

Issued this 8th day of February 1944.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 44-1880; Filed, February 8, 1944; 11:42 a. m.]

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[1] 8 F.R. 12326, 15427.

*Copies may be obtained from the Office of Price Administration.

[2] 8 F.R. 2110, 2663, 4332, 5746, 7597.

PART 1347—PAPER, PAPER PRODUCTS, RAW MATERIALS FOR PAPER AND PAPER PRODUCTS, PRINTING AND PUBLISHING

[MPR 266,[1] Amdt. 6]

CERTAIN TISSUE PAPER PRODUCTS

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.*

Maximum Price Regulation No. 266 is amended in the following respects:

1. Section 1347.511 is amended to read as follows:

§ 1347.511 *Petitions for amendment and applications for adjustment.* (a) Any person seeking an amendment of any provision of this regulation may file a petition for amendment in accordance with the provisions of Revised Procedural Regulation No. 1 issued by the Office of Price Administration.

(b) Under the following conditions a manufacturer of any of the commodities covered by this Maximum Price Regulation No. 266 may apply for adjustment of his maximum prices where the maximum price causes him substantial hardship and where the War Production Board certifies by letter to the Office of Price Administration that the commodity involved is necessary, in the quantity actually to be supplied by the applicant, to meet a military or essential civilian need. The amount of adjustment which may be granted will be determined by the Office of Price Administration and will in no case exceed an amount deemed reasonably necessary to insure the applicant's production of the commodity in question, in the light of the applicant's costs of production and his over-all financial condition.

(1) *Form of application for adjustment.* Applications for adjustment shall be filed in accordance with subpart B of Revised Procedural Regulation No. 1, with the Office of Price Administration, Code 695, Washington, D. C. In addition the applicant shall set forth the following data:

(i) Statement of the applicant's maximum price, the section of Maximum Price Regulation No. 266 under which such price is determined, the proposed adjusted maximum price, and the complete specifications of the commodity.

(ii) Statement as to the length of time the applicant has been producing the commodity, and the actual production in cases per month for the last six months, preceding the date of filing of the application.

(iii) A record of the applicant's actual costs involved in the manufacture and sale of the commodity is to be given in full detail. These costs are to be given for the total production during each of the last two quarterly accounting periods.

(iv) Statement of the seller's over-all financial condition, including the information required by OPA Form A (Annual Financial Report) for the fiscal year next

[1] 7 F.R. 9335, 10714; 8 F.R. 531, 2431, 4131, 7383, 12468, 12795, 13117.